



COMMERCIAL CONTRACT CONDOMINIUM ADDENDUM

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ADDENDUM TO COMMERCIAL CONTRACT BETWEEN THE UNDERSIGNED SELLER AND BUYER CONCERNING THE PROPERTY AT _____

A. Paragraph 2 of the contract is amended by adding the following to be included as part of the Property: "the Property's (the unit) undivided interest in the common elements designated by the recorded condominium declaration, including those areas reserved as limited common elements appurtenant to the unit and such other rights to use the common elements which have been specifically assigned to the unit in any other manner, including but not limited to parking and storage areas assigned to the unit, which are: _____"

B. The present periodic expense or assessment for the unit is \$_____ per _____, which pays for the expenses necessary for the operation and maintenance of common areas and the following services to the unit: ☐ water; ☐ security; ☐ sewer; ☐ garbage; ☐ electricity; ☐ gas; ☐ cable; ☐ _____

C. Any transfer or processing fee payable to the owners' association will be paid by ☐ Seller ☐ Buyer.

D. Condominium information is provided to Buyer as follows (*check only (1) or (2) below*):

☐ (1) If Seller is the condominium declarant or successor declarant.

"Condominium information statement" means a statement prepared by the declarant that contains, at a minimum, the information required by §82.153, Property Code.

☐ (a) Buyer has received a copy of the condominium information statement. Buyer is advised to read the condominium information statement before signing the contract.

☐ (b) Buyer has not received a copy of the condominium information statement. Within _____ days after the effective date of the contract, Seller, at Seller's expense, will furnish Buyer the condominium information statement. Buyer may cancel the contract before the 6th day after Buyer receives the condominium information statement by delivering written notice of cancellation to Seller by hand-delivery or certified mail, return receipt requested.

☐ (2) If Seller is not the condominium declarant or successor declarant (resale).

"Resale certificate" means a certificate completed by the owners' association that contains, at a minimum, the declaration, bylaws, and rules of the Property's owners' association, and the other information required by §82.157, Property Code.

☐ (a) Buyer has received a resale certificate completed no earlier than 3 months before the effective date of the contract.

☐ (b) Buyer has not received a resale certificate. Within _____ days after the effective date of the contract, Seller, at Seller's expense, will furnish Buyer a resale certificate prepared not earlier than 3 months before the date it is delivered to Buyer. Buyer may cancel the contract before the 6th day after Buyer receives the resale certificate by delivering written notice of cancellation to Seller by hand-delivery or certified mail, return receipt requested.

- ☐ (c) Buyer has received Seller's affidavit that Seller requested information from the owners' association concerning its financial condition as required by the Property Code and that the owners' association did not provide the resale certificate or information required in the resale certificate. Buyer and Seller agree to waive the requirement to furnish the resale certificate.

Seller: _____

Buyer: _____

By: _____

By (signature):

Printed Name: _____

Title: _____

By: _____

By (signature):

Printed Name: _____

Title: _____

By: _____

By (signature):

Printed Name: _____

Title: _____

By: _____

By (signature):

Printed Name: _____

Title: _____